Writing Sample

The following pages are excerpted from an appellate brief submitted for USC Moot Court, *Monster Energy Co. v. Jiangsu Sitouguai Indus. Co.*, No. 22cv590-LL-DDL (9th Cir.), Brief for Appellant.

This brief was co-authored with two teammates. The excerpt below reproduces only the two sections independently researched and drafted by the undersigned: the argument regarding similarity of the parties' marks, and the argument regarding likelihood of expansion under the Sleekcraft factors.

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ARGUMENT

I. The parties' marks are not dissimilar, because the dominant element "Monster" is identical and overwhelms minor differences.

The similarity of the marks factor is one of the most important in the *Sleekcraft* analysis, and it weighs heavily in Monster's favor. The district court erred by minimizing overwhelming similarities and focusing instead on minor differences in typography and logos. *Monster Energy*, No. 5:17-cv-00947. The record, supported by Monster's exhibits and the images before the court, demonstrates that both parties use the identical dominant term "Monster," presented in the same black-and-green color scheme that consumers have long associated with Monster's trade dress. R #41-1, p6. This is precisely the type of overlap that leads consumers to assume affiliation.

The court below relied on the fact that Monster's registrations often include its claw logo and stylized font, while defendants' mark always includes the numeral "4" and lacks the claw design. *Monster Energy,* No. 5:17-cv-00947, at 36–37 (C.D. Cal. Nov. 4, 2024). But that approach reflects a fundamental misapplication of the anti-dissection rule. Courts do not parse marks under a microscope or weigh stylization more heavily than consumer perception. The law requires marks to be evaluated as they appear in the marketplace, with emphasis on the dominant element as perceived by ordinary consumers. *AMF, Inc. v. Sleekcraft Boats*, 599 F.2d 341, at 351 (9th Cir. 1979). Here, the dominant element is the word "Monster," which is identical across both marks. The addition of the numeral "4" is a trivial modification that does not alter the commercial impression. As the Ninth Circuit explained in *Stone Creek, Inc. v. Omnia Italian Design, Inc*., "identical marks paired with identical goods can be case-dispositive… 'likelihood of confusion would follow as a matter of course.'" In such circumstances, minor differences in

detail are overwhelmed by the near identity of the marks themselves. 875 F.3d 426, 433–34 (9th Cir. 2017).

Jiangsu's attorneys portrayed the "4" prefix as a decisive differentiator, arguing that "4Monster" creates a distinct commercial identity. But courts have consistently held that prefixes, suffixes, or numerals rarely dispel confusion when the core of the mark remains the same. In *Stone Creek, Inc.* the Ninth Circuit explained that minor differences in detail are "overwhelmed by the near identity of the marks themselves." 875 F.3d 426, 433–34 (9th Cir. 2017). Likewise, in *E. & J. Gallo Winery v. Gallo Cattle Co*., the court held that the addition of "Joseph" or "Cattle Company" did not prevent confusion because consumers continued to focus on the distinctive core of the mark—"Gallo." 967 F.2d 1280, 1291 (9th Cir. 1992). The same reasoning applies here: just as "Joseph Gallo Cheese" was found confusingly similar to "Gallo" wine, consumers encountering "4Monster" towels or backpacks are far more likely to notice "Monster" than the preceding numeral, leaving the dominant and source-identifying word unchanged.

A. Monster's trade dress and family of marks reinforce consumer association and increase the likelihood of confusion.

The district court also discounted Monster's evidence of trade dress, reasoning that differences in logo design outweighed similarities. *Monster Energy,* No. 5:17-cv-00947, at 36–37 (C.D. Cal. Nov. 4, 2024). That conclusion ignored record evidence showing that defendants adopted Monster's exact trade dress colors—black and Pantone 375c green—for their 4Monster branding. R #41-1, p 29. The Supreme Court has held that color alone can serve as a protected mark when it acquires distinctiveness. *Qualitex Co. v. Jacobson Prods. Co.*, 514 U.S. 159, 163–64 (1995). Monster has invested decades and hundreds of millions of dollars embedding the

black-and-green palette into consumer consciousness through its packaging, sponsorships, and merchandise. *Monster Energy*, No. 5:17-cv-00947, at 23-24 (C.D. Cal. Nov. 4, 2024). By adopting those very colors, 4Monster reinforced the association with Monster's products. Jiangsu's suggestion that differences in logos outweigh identical colors and identical dominant words misconceives the way consumers process marks. As this Court has recognized, "similarities weigh more heavily than differences." *GoTo.com, Inc. v. Walt Disney Co*., 202 F.3d 1199, 1206 (9th Cir. 2000).

Moreover, Monster's family of marks makes consumer confusion even more likely. Monster has registered and used numerous related marks—such as JAVA MONSTER®, MUSCLE MONSTER®, and MONSTER REHAB® —that consumers recognize as part of a cohesive brand family. *Monster Energy*, No. 5:17-cv-00947, at 4 (C.D. Cal. Nov. 4, 2024). When consumers encounter another "Monster" product in a similar black-and-green design, they naturally assume it is part of the same brand family. The Federal Circuit has recognized that family-of-marks doctrine increases the likelihood of confusion. *J & J Snack Foods Corp. v. McDonald's Corp*., 932 F.2d 1460, 1462–64 (Fed. Cir. 1991). Jiangsu's arguments ignored this reality, treating "Monster" as if it were a generic or weak element when the district court itself acknowledged that Monster's mark is strong. *Monster Energy*, No. 5:17-cv-00947, at 21-22 (C.D. Cal. Nov. 4, 2024)

B. The district court erred in narrowing Monster's rights to beverages, because Monster's fame and broad commercial use entitle its mark to expansive protection.

Jiangsu further argued that Monster is "just a beverage company" seeking to monopolize a common word. *Id*. But that mischaracterizes both the record and the law. Monster is not

attempting to reserve the word "monster" in the abstract. Its rights attach to the MONSTER® family of marks as used in commerce, and those rights extend to prevent uses that trade on Monster's goodwill. *Recot, Inc. v. Becton*, 214 F.3d 1322, 1329 (Fed. Cir. 2000) (holding that fame extends a mark's protection into new markets). The record contains millions of units of non-beverage merchandise already sold or licensed under Monster's marks. *Monster Energy*, No. 5:17-cv-00947, at 28-29 (C.D. Cal. Nov. 4, 2024). Far from monopolizing a word, Monster is protecting the distinct source-identifying function of its established brand.

In sum, the record establishes that the marks are overwhelmingly similar. Both prominently feature the identical word "Monster," both employ the same distinctive color scheme, and both target consumers in overlapping retail spaces. The district court gave undue weight to minor stylization differences and to Jiangsu's narrative that Monster seeks to monopolize a word, rather than protecting its famous family of marks. Because the law requires emphasis on the dominant element and on consumer perception, not lawyerly parsing of fonts, this factor strongly favors Monster.

II. Expansion is a predictive, consumer-focused inquiry that weighs in Monster's favor

The expansion factor underscores why Monster is entitled to relief. The Ninth Circuit has explained that this factor turns on whether there is "a strong possibility that either party may expand his business to compete with the other." *AMF, Inc. v. Sleekcraft Boats*, 599 F.2d 341, 354 (9th Cir. 1979). That possibility is particularly acute where, as here, the senior mark is famous and enjoys broad consumer recognition. In *Vision Sports, Inc. v. Melville Corp.,* the Ninth Circuit emphasized that the stronger a mark, the greater its ability to prevent consumer confusion, since consumers are more inclined to view strong marks as indicating a single source across different contexts. 888 F.2d 609, 616 (9th Cir. 1989). Similarly, the Federal Circuit in *Recot, Inc. v. Becton*

cautioned that fame places a mark in a "different league," affording it broader protection — in part because consumers may more readily associate a famous name with varied goods or services. 214 F.3d 1322, 1329 (Fed. Cir. 2000). Here, Monster's fame, coupled with defendants' use of the identical dominant term and overlapping trade channels, makes it inevitable that consumers will expect Monster to expand into the very product lines that 4Monster has occupied.

The district court erred in demanding direct receipts and sales records for every non-beverage item Monster has distributed. *Monster Energy,* No. 5:17-cv-00947, at 29–33 (C.D. Cal. Nov. 4, 2024). That is not the legal standard. Expansion does not turn on whether Monster has already documented each transaction, but on whether consumers reasonably expect Monster to broaden into the junior user's market. *Sleekcraft*, 599 F.2d at 354. In F*ortune Dynamic, Inc. v. Victoria's Secret Stores Brand Mgmt,* the Ninth Circuit underscored that the analysis of a mark owner's capacity or intent to expand (i.e., "bridging the gap") must rest on predictive, consumer-oriented evidence, rather than purely on accounting or retrospective financial metrics. 618 F.3d 1025, 1036–37 (9th Cir. 2010). To require receipts is to nullify the very purpose of this factor, which is designed to protect a brand's ability to expand without losing consumer recognition to an infringing competitor.

A. Monster's long record of sales, licensing, and promotions beyond beverages demonstrates an established course of expansion that consumers readily recognize.

The record confirms that Monster's expansion is not speculative. Since 2003, Monster has marketed and distributed millions of non-beverage goods bearing its marks, including more than 2.2 million t-shirts, 1.7 million backpacks, 147,000 bags, and 273,000 towels. *Monster Energy,* No. 5:17-cv-00947, at 28–29 (C.D. Cal. Nov. 4, 2024). It has entered into license

agreements with companies such as NASCAR, Zumiez, Kawasaki, and Yamaha, generating substantial royalties and ensuring Monster's retail presence across apparel, gear, and accessories. *Id*. Monster has also invested in promotional initiatives such as the Monster Army® and Monster Gear® programs, through which it has distributed branded apparel, towels, and bags to athletes and consumers worldwide**.** R #41-1, p13-14. These facts demonstrate not just intent, but an established history of expansion that any reasonable consumer would recognize.

B. The overlap between Monster's expansion products and defendants' goods confirms that consumers will naturally assume affiliation.

The defendants' product line highlights why expansion matters. 4Monster sells towels, backpacks, and bags—the very categories in which Monster has built recognition through sales, licensing, and promotion. This overlap directly undermines Monster's ability to extend its brand into adjacent markets, because consumers will naturally assume that 4Monster's goods are part of Monster's own expansion. As Judge Learned Hand explained nearly a century ago, a trademark owner "is entitled to protection against the use of it upon such goods as would reasonably be supposed to come from him." *Yale Elec. Corp. v. Robertson*, 26 F.2d 972, 974 (2d Cir. 1928). That principle applies with special force here, where Monster is not only poised to expand, but already has done so in the very markets defendants occupy.

Expansion also integrates the other *Sleekcraft* factors. Monster's fame increases consumer expectation of diversification, as *Vision Sports* recognized. 888 F.2d at 616. The similarity of the marks—dominated by the identical word "Monster" and the black-and-green trade dress—strengthens that expectation, because consumers will perceive 4Monster goods as a natural line extension. R #41-1, p24-25. The overlap in trade channels, especially in online marketplaces such as Amazon and Walmart, removes any buffer between the parties' products.

And the survey evidence, which demonstrated that a majority of consumers believed 4Monster was affiliated with Monster, confirms that these expectations already exist in the marketplace. *Id*. p10, 16, 19.

Taken together, the expansion factor reinforces every reason why judgment should be reversed. Monster has shown a documented history of sales and licensing beyond beverages, substantial investment in lifestyle branding, and direct overlap with defendants' goods. The law protects precisely this type of growth for famous marks, and the district court's contrary approach—requiring receipts—misapplied governing precedent. Expansion confirms what the other factors already establish: consumers expect Monster to extend into the very categories that 4Monster has occupied. For that reason, this factor, too, weighs decisively in Monster's favor.